

because the evidence indicates that plaintiff only knew the bus driver's first name, and she did not know his full name until months after she filed her original and first amended complaint. In other words, plaintiff's Doe amendment adding Duong to the case was not false or improper.

Finally, to the extent that defendant argues that plaintiff's government tort claim was also false and improper because it failed to name him, the argument is misplaced and the court intends to disregard it. Failure to file a timely government tort claim may support a general demurrer to the complaint, as the filing of a government claim is an essential prerequisite to bringing an action against a public entity. (Gov. Code, §§ 910; 950.2.) The claim should include information about the nature of the plaintiff's injury, including "[t]he date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted." (Gov. Code, § 910, subd. (c).) However, the claims statute does not require the plaintiff to identify the government employee who caused the injury. (*Ibid.*)

Here, defendant has not brought a demurrer to the first amended complaint, so his contention that the government claim was defective is misplaced. A motion to strike is not a general demurrer, and it does not assert that the plaintiff's complaint fails to state facts sufficient to constitute a cause of action. Therefore, defendant cannot use a motion to strike to challenge the alleged defects in the underlying tort claim.

In any event, defendant's motion fails to show that tort claim was defective or improper. Defendant admits that plaintiff served a timely claim with Clovis Unified on January 27, 2023, and that the claim was rejected on March 13, 2023. (Shapazian decl., Exhibits A and B. The court will take judicial notice of the claim filed by plaintiff and Clovis Unified's rejection of the claim.) The claim stated the date of the injury and described the circumstances leading up to the injury. (Shapazian decl., Exhibit A.) The claim also stated that the bus driver failed to warn of the dangerous condition on the bus or clean up the spilled liquid that caused plaintiff to fall. (*Ibid.*) While the claim did not name the bus driver, the claims statute does not require the employee who caused the injury to be named. (Gov. Code, § 910, subd. (c).) It only requires the plaintiff to describe "[t]he date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted." The claim here provided all of the relevant information about the incident, so defendant has failed to show that the claim was defective. As a result, the court intends to disregard defendant's argument regarding the government claim.

In summary, the court intends to deny the motion to strike and order defendant Tony Duong to file his answer to the FAC.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/29/26
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: **California Fair Plan Association v. Shaver Lake Propane**
Superior Court Case No. 25CECG04660

Hearing Date: July 1, 2026 (Dept. 501)

Motion: Application for Admission of David Dahlmeier to Appear as
Counsel for Defendant Shaver Lake *Pro Hac Vice*

Tentative Ruling:

To grant. (Cal. Rules of Court, Rule 9.40(a).

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/29/26
(Judge's initials) (Date)